

Historical Underpinnings

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INTRODUCTION

India is the world's largest democracy and seventh-largest in terms of geographical area. It is vibrant mosaic of diverse cultures and religions. Its Constitution, enacted in 1950, embodies freedom, justice, and democratic principles, drawing from ancient Indian governance, colonial experiences, and the freedom struggle. This remarkable journey harmonizes traditional values with modern principles, and mirrors India's rich culture and guiding its inclusive and progressive journey, marking a collaborative triumph in the spirit of a newly independent nation.

The evolution of the Indian Constitution is a fascinating journey through India's complex history, reflecting its social, political, and cultural transformations. This process began long before the actual drafting of the Constitution in 1946.

EVOLUTION OF THE CONSTITUTION

Our present-day India is a **federal state with its entities divided among states and union territories**. It follows the **system of government, which is a parliamentary democracy based on the Westminster model** (Westminster is a place in London where the British Parliament is located).

The foundation stone for the present federal state was laid with the advent of the Britishers in India. The Britishers came to India as traders, but with time, they gained political influence in the Indian subcontinent. This changed their presence from merchants and traders to administrators. They introduced changes through rules and regulations to establish their administration. The objective of these changes was to serve the British imperial ideology, but unintentionally, they infused elements of the modern State into India's political system.

There were certain events in British rule that laid down the legal framework for the organization and functioning of government and administration in British India.

The Acts Enacted By The British are Explained Here in Chronological Order

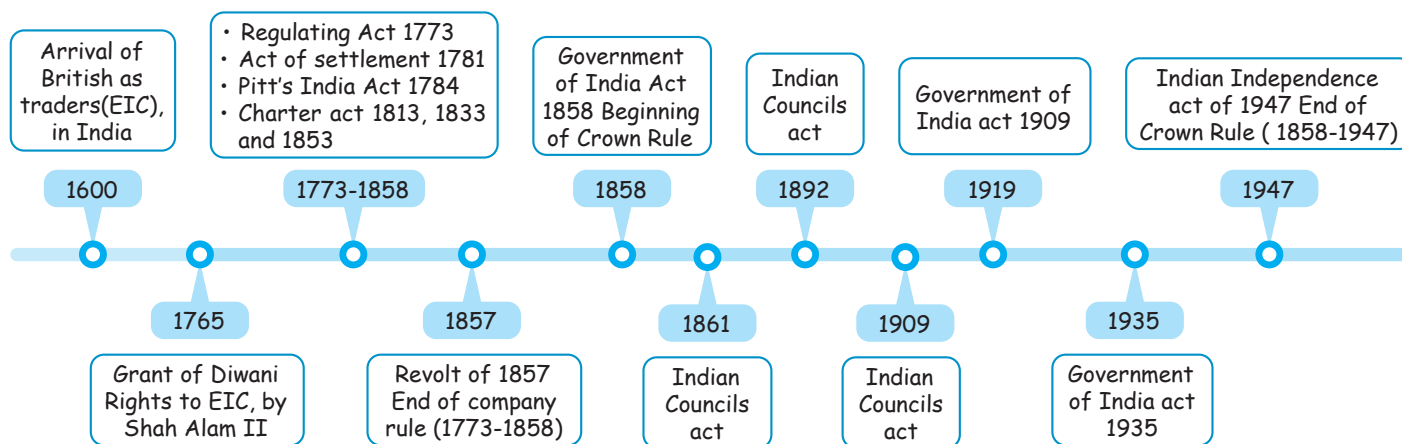


Fig. 1.1: Evolution of Constitutionalism in India

REGULATING ACT OF 1773 (GOVERNOR-GENERAL WARREN HASTINGS)

Background: A dual system of government was introduced after the Diwani of Bengal, Bihar and Orissa was granted, where the Company had the authority without any

When the British came to India during the 1600's, in the form of merely a trading Company, it had only the right of trading in India under a charter granted by Queen Elizabeth I.

However, in 1765, the Company obtained the '*diwani*' rights (over revenue and civil justice) of Bengal, Bihar and Orissa from the Mughal Emperor, Shah Alam II, after their victory in the Battle of Buxar (1764).

responsibility, and its Indian counterpart had all the responsibility without any authority. This system had the following characteristics-

1. Corruption among servants of the Company
2. Oppression of peasantry with excessive revenue collection and
3. The bankruptcy of the Company, while the servants flourished.

The British government decided to regulate the Company through this act.

Salient Features of the Regulating Act of 1773

- ❑ **Establishment of a Governor-General and Council:** The Act created a centralized administration in Bengal by establishing a Governor-General and Council in Calcutta. The council consisted of four members. This body was granted supervisory powers over the presidencies of Madras and Bombay, consolidating British authority over the East India Company's territories in India.
- ❑ **Creation of a Supreme Court:** The Act established a Supreme Court in Calcutta, comprising 1 chief justice and 3 other judges. This court held jurisdiction over all British subjects in Bengal, both civil and criminal.
- ❑ **Regulation of the East India Company's Dividends and Governance:** The Act limited the East India Company's dividends to 6% and restricted the terms of the Court of Directors to four years. This aimed to curb the Company's financial excesses and increase oversight over its governance.
- ❑ **Prohibition of Bribery and Private Trade:** The Act prohibited East India Company employees from engaging in private trade or accepting bribes from natives. This aimed to reduce corruption and promote ethical conduct among the Company's representatives.
- ❑ **Supervision of Company's Finances:** The Act granted the British government the right to inspect the East India Company's financial records. This provided greater transparency and accountability for the Company's financial dealings.
- ❑ **Supervision over the Court of Directors:** The Court of Directors was supposed to report on its revenue, civil, and military affairs in India to the British Government.

Significance

- ❑ It was this Act that worked as the **first step** taken by Britain **to control and regulate the affairs of the East India Company** and its colony - India.
- ❑ For the **first time**, this Act **recognized the political and administrative functions** of the Company. It laid the foundations of centralized administration in India;

Limitations

- ❑ **Limited Scope of Reform:** The Regulating Act primarily focused on regulating the East India Company's finances and administration. It did not address the underlying causes of India's economic and social problems, such as land revenue systems and peasant exploitation.
- ❑ **Failure to Prevent Future Conflicts:** The Act did not prevent future conflicts between the East India Company and Indian rulers. These tensions ultimately led to the British conquest of India in the 19th century.

AMENDING ACT OF 1781 (GOVERNOR-GENERAL WARREN HASTINGS)

Background: To rectify the defects of the Regulating Act of 1773, the British Parliament passed the Act of Settlement, known as the Amending Act of 1781.

Key Provisions of the Amending Act of 1781

1. **Demarcation of Powers between the Supreme Court and the Governor-General in Council:** The Act clarified the relationship between the Supreme Court and the Governor-General in Council, resolving the jurisdictional disputes that had arisen under the Regulating Act. It exempted the Governor-General, Council members, and Company servants from the Supreme Court's jurisdiction in cases arising from their official duties.
2. **Establishment of Sadar Adalat Courts:** The Act recognised Sadar Adalat Courts, in Bengal, Madras, and Bombay as Provincial Adalats, authorizing the Governor-General and the council to hear and determine the appeals and references of the mufassil courts in civil matters. These courts were intended to provide an efficient and accessible system of justice for Indians. The courts were to administer the personal law of the defendants.
3. **Regulation of Revenue Collection:** The Act introduced regulations to improve the system of revenue collection in Bengal, which aimed to prevent corruption and ensure fair treatment of zamindars (landowners).
4. **Establishment of a Board of Revenue:** The Act established a Board of Revenue in Calcutta to oversee revenue collection and land administration in Bengal.
5. **Appeal Process:** The act established that the appeals from provincial courts were to be received by the Governor General-in-Council and not the Supreme Court.

Significance: It clarified the division of powers between the Supreme Court and the Governor-General in Council, recognised provincial courts, introduced regulations

for revenue collection, and reformed the system of civil service appointments—these changes aimed to address the shortcomings of the Regulating Act and improve the administration of British India.

Limitations: It did not fully address the underlying causes of India's economic and social problems. The East India Company's commercial interests and the growing British imperial ambitions continued to shape the course of British rule in India.

PITT'S INDIA ACT OF 1784 (GOVERNOR-GENERAL: WARREN HASTINGS)

Background: The company continued to be plagued by corruption and mismanagement, and its financial situation deteriorated further. In addition, the act did not effectively address the growing tensions between the British and Indian rulers.

In response to these problems, William Pitt the youngest British Prime Minister, introduced the Pitt's India Act of 1784. This act aimed to strengthen the British government's control over the East India Company and improve the administration of British India.

Some of the key features are:

- ❑ It distinguished between the commercial and political functions of the Company.
- ❑ It allowed the Court of Directors to manage the commercial affairs, but created a new body called Board of Control to manage the political affairs. Thus, it established a system of double government.
- ❑ The Pitt's India Act gave the British government a large measure of control over the Company's affairs. In fact, the Company became a subordinate department of the State. The Company's territories in India were termed 'British possessions'.
- ❑ The government's control over the Company's affairs was greatly extended. A Board of Control consisting of the chancellor of exchequer, a secretary of state, and four members of the Privy Council (to be appointed by the Crown) were to exercise control over the Company's civil, military, and revenue affairs. All dispatches were to be approved by the board. Thus, a dual system of control was set up.
- ❑ In India, the Governor-General was to have a council of three members (including the commander-in-chief) and the presidencies of Bombay and Madras were made subordinate to the Governor-General.
- ❑ A general prohibition was placed on aggressive wars and treaties (breached often).

Significance

- ❑ The Company's territories in India were, for the first time, called the '**British possessions in India**'
- ❑ The British Government was presented with supreme control over the Company's affairs and its administration in India, and the Company became a subordinate department of the state.

Limitations

- ❑ The act did not adequately address the underlying causes of India's economic and social problems, such as poverty and land inequality.
- ❑ The act did not prevent future conflicts between the British and Indian rulers, which ultimately led to the British conquest of India.
- ❑ The act did not provide for adequate representation of Indian interests in the administration of British India.

ACT OF 1786 (GOVERNOR-GENERAL: CORNWALLIS)

Background: In 1786, when Cornwallis was appointed as the Governor-General of Bengal, he had placed two demands before the British Government:

- ❑ In special cases, he should be **given overriding powers** over the council's decisions.
- ❑ He should also be the Commander-in-Chief.

Features: Accordingly, the Act of 1786 fulfilled both of his demands in its provisions. Cornwallis had the powers of both the Governor-General and the Commander-in-Chief.

CHARTER ACT OF 1793 (GOVERNOR-GENERAL: JOHN SHORE)

Background: This act was passed against the backdrop of several significant developments in India, including

- ❑ The growing political and economic dominance of the East India Company in India.
- ❑ There were increasing tensions between the British and Indian rulers.
- ❑ The financial difficulties faced by the East India Company.

This Act Had The Following Features

- ❑ It **extended the Company's Charter** to trade with India (its trade monopoly) for the next **20 years**.
- ❑ It extended the **overriding powers** given to the Governor-General over his council under the Act of 1786 to all the future Governor-Generals and Governors of Presidencies.
- ❑ The **Commander-in-chief was not to be a member of the council** unless he was so appointed.

- ❑ Members of the **Board of Control and their staff** were to be **paid out of the Indian revenues**, which continued **up to 1919**.
- ❑ **Royal approval** was mandated for the **appointment** of the **Governor-General, the Governors, and the Commander-in-Chief**.
- ❑ The company's senior officials could not leave the country without permission; doing so was treated as a resignation.
- ❑ The Company was empowered to give licenses (known as 'privilege' or 'country trade') to individuals and the Company's employees. These licenses paved the way for opium shipments to China.
- ❑ The **Company** was to pay **5 lakh pounds annually to the British government** from the Indian revenues after paying the necessary expenses.
- ❑ The **revenue administration and judiciary functions** were **separated**, and subsequently, **Maal Adalats (revenue courts) disappeared**.

Significance

- ❑ **Centralization of Power:** The act centralized power under the Governor-General of Bengal, granting him greater authority over the presidencies of Madras and Bombay. This centralization aimed to improve coordination and efficiency in the administration of British India.
- ❑ **Reorganization of Judiciary:** The act reorganized the judiciary, separating revenue administration from judicial functions. This separation aimed to improve the impartiality and effectiveness of the judicial system.
- ❑ **Regulation of Trade:** The company's trade monopoly in India was extended for another 20 years.

CHARTER ACT OF 1813 (GOVERNOR-GENERAL: HASTINGS)

Background: Business interests in England were pressing for an end to the Company's monopoly over Indian trade due to:

- ❑ Emerging spirit of *laissez-faire*.
- ❑ Napoleon enforced the closing of the European ports for Britain under the continental system.

Some Key Features of The Charter Act of 1813 are

- ❑ **End of the East India Company's Monopoly:** The act abolished the East India Company's monopoly on trade with India, except for trade in tea and opium with China. This opened up trade opportunities for British merchants and other European traders, promoting economic competition and diversification in India.
- ❑ **Promotion of Education and Knowledge:** The act allocated 1 lakh rupees annually for the promotion of

education and knowledge in India. This funding aimed to establish schools, colleges, and libraries, fostering intellectual growth and development in the country.

- ❑ **Religious Freedom and Missionary Activities:** The act granted Christian missionaries the right to propagate their faith in India. This provision, while controversial, reflected a growing interest in religious conversion and cultural influence in British India.
- ❑ **Strengthening of Judiciary:** The act empowered the Supreme Court of Calcutta to extend its jurisdiction over all British subjects, including those residing in the interior of India. This strengthened the judicial system and provided greater access to justice for British subjects.
- ❑ **Explicit Recognition of British Territories in India:** The Company was to retain the possession of territories and the revenue for 20 years more without prejudice to the sovereignty of the Crown. The regulations made by the Councils of Madras, Bombay, and Calcutta were now required to be laid before the British Parliament. The Constitutional position of the British territories in India was thus explicitly defined for the first time.

Significance

As a result of this act, more Englishmen came to India and European culture began to flow into India. The Company was made more subservient to the Crown and Parliament. The value of trade tremendously increased. Indian industries received a set back.

Limitation

Limited Scope of Economic Liberalization: While the act opened up trade opportunities, it did not fully dismantle the East India Company's economic dominance. The Company retained its control over key sectors like salt and opium, restricting true economic liberalization.

CHARTER ACT OF 1833 (GOVERNOR-GENERAL OF INDIA: WILLIAM BENTINCK)

Background: The British and other European trading companies were lobbying to completely remove the monopoly granted to the East India Company. The Company also had much more territory under its control. Hence to regulate its power, Charter Act 1833 was enacted.

Some of The Key Features Are

- ❑ The lease of 20 years to the Company was further extended. Territories of India were to be governed in the name of the Crown.
- ❑ The Company's monopoly of trade with China was abolished.

- ❑ All restrictions on European immigration and the acquisition of property in India were lifted. Thus, the way was paved for the wholesale European colonization of India.
- ❑ **In India, a financial, legislative, and administrative centralization of the government was envisaged:**
 - The Governor-General was given the power to superintend, control, and direct all civil and military affairs of the Company.
 - Bengal, Madras, Bombay, and all other territories were placed under complete control of the Governor-General.
 - All revenues were to be raised under the authority of the Governor-General, who would have complete control over the expenditures, too.
 - The Governments of Madras and Bombay were drastically deprived of their legislative powers and left with a right to propose to the Governor-General the projects of law which they thought to be expedient.
- ❑ A law member was added to the Governor-General's council for professional advice on law-making.
- ❑ Indian laws were to be codified and consolidated.
- ❑ No Indian citizen was to be denied employment under the Company on the basis of religion, colour, birth, descent, etc. (Although the reality was different, this declaration formed the sheet anchor of political agitation in India.)
- ❑ The administration was urged to take steps to ameliorate the conditions of slaves and to ultimately abolish slavery. (Slavery was abolished in 1843.)
- ❑ The Charter Act of 1833 attempted to introduce a system of open competition for selection of civil servants and stated that the Indians should not be debarred from holding any place, office and employment under the Company. However, this provision was negated after opposition from the Court of Directors.

Significance

- ❑ **Establishment of the Indian Law Commission:** The act established the Indian Law Commission, tasked with codifying and reforming Indian laws. This aimed to create a more comprehensive, consistent, and fair legal system in India.
- ❑ **Admission of Indians into Civil Service:** The act opened up the East India Company's civil service to Indians based on merit and qualifications. This aimed to improve the representation and participation of Indians in the administration of British India.

CHARTER ACT OF 1853 (GOVERNOR-GENERAL OF INDIA DALHOUSIE)

Background: The Charter Act of 1853 was the final renewal of the East India Company's charter, granted under the

British monarchy. It was passed by the British Parliament in response to the growing concerns about the Company's administration of India and the need for further reforms. The act aimed to address the shortcomings of previous legislation and introduce new measures to improve the governance and administration of British India.

Some of The Key Features are

- ❑ The Company was to continue possession of territories unless the Parliament provided otherwise.
- ❑ The number of members of the court of Directors was reduced from 24 to 18. 6 among them were to be appointed by the British Crown.
- ❑ The Company's patronage over the services was dissolved—the services were now thrown open to a competitive examination.
- ❑ The law member became the full member of the Governor-General's executive council.
- ❑ The separation of the executive and legislative functions of the Government of British India progressed with the inclusion of six additional members for legislative purposes.
- ❑ Local representation was introduced in the Indian legislature. The legislative wing came to be known as the Indian Legislative Council. However, a law to be promulgated needed the assent of the Governor-General, and the Governor-General could veto any bill of the legislative council.

Significance

- ❑ The separation of legislative and executive powers and the introduction of competitive examinations for civil service recruitment were significant steps toward modernization and efficiency in governance.
- ❑ The act's emphasis on the representation and participation of Indians in the Legislative Council reflected a growing awareness of Indian aspirations and the need for greater involvement in their own governance.

GOVERNMENT OF INDIA ACT, 1858 (VICEROY CANNING)

Background: When the British Crown assumed sovereignty over India from the East India Company, the Parliament enacted the **first statute for the governance of India** under the direct rule of the British Government – the **Government of India Act, 1858**.

This **significant Act was enacted in the wake of the Revolt of 1857** – also known as the First War of Independence or the 'sepoy mutiny'.

The act, known as **the Act for the Good Government of India**, liquidated the East India Company and transferred the powers of Government, territories, and revenues to the British Crown. (India became a direct British colony.)

The Provisions of This Act Were as Follows

- ❑ **Liquidation of the East India Company:** The Act resulted in the collapse of the East India Company and the transfer of control of Indian colonies to the British Crown.
- ❑ **Governance in the Name of the British Queen:** The Act stated that the British Indian possessions would be administered in the name of Queen Victoria.
- ❑ **Introduction of the Secretary of State and Council:** He was to be a member of the British Parliament and a member of the Prime Minister's cabinet. The Secretary of State for India was in charge of communication between the British and Indian governments. The Secretary of State had enormous powers and could issue secret despatches to India without consulting the council. He was assisted by a council of **15 members**.
- ❑ **Scrapping of the Court of Directors and Board of Control:** The powers previously held by the Company's Court of Directors were transferred to the Secretary of State for India.
- ❑ **Appointment of Governor-General and Viceroy:** The Act changed the designation of the Governor-General of India to that of Viceroy of India, who functioned as the direct representative of the British Crown in India.
- ❑ **Establishment of the Executive Council:** The Viceroy was to be helped by an Executive Council in carrying out British India's administrative tasks.
- ❑ **Abolition of Dual Government and the Doctrine of Lapse:** The Act repealed the Pitt's India Act's dual government system and removed the doctrine of lapse, which permitted the British to conquer states without a male heir.
- ❑ **Introduction of Indian Civil Services:** The Act provided for the foundation of the Indian Civil Services, which were tasked with administering the country. Indians were allowed to part of British Army, earlier they were just part of EIC army.
- ❑ **Status of Indian Princes and Chiefs:** More than 560 Indian princes and chiefs were allowed to retain their independence as long as they recognized British suzerainty.

Limitation

The Act of 1858 did not alter in any substantial way the System of Government of India.

INDIAN COUNCILS ACT OF 1861 (VICEROY CANNING)

Background: Following the **significant uprising of 1857**, the British Government recognized the need to involve Indians in the governance of their nation. In line with this strategy of collaboration, the **British Parliament passed three acts in 1861, 1892, and 1909**.

The **provisions of this Act** were as follows:

- ❑ The **induction of Indians into the Legislative Council** marked the initiation of representative institutions. This involved the **Viceroy nominating certain Indians** as non-official members of his expanded council.
- ❑ In **1862, Canning**, the Viceroy at that time, nominated three Indians to his legislative council: the Raja of Banaras, the Maharaja of Patiala, and Sir Dinkar Rao.
- ❑ **Decentralisation:** The restoration of the Bombay and Madras Presidencies' legislative authority marked the beginning of decentralisation. The centralizing trend that had begun with the Regulating Act of 1773 and peaked under the Charter Act of 1833 was reversed as a result of this. The devolution of legislative authority resulted in the provinces being granted almost total internal autonomy in 1937.
- ❑ **Legislative Council:** The introduction of new legislative councils was accompanied by the establishment of legislative councils for Bengal, North-Western Provinces, and Punjab. These councils were set up in 1862, 1886, and 1897, respectively.
- ❑ **Portfolio System:** It granted authority to the Viceroy to establish regulations and directives to facilitate smoother business transactions within the council. Additionally, it acknowledged the 'portfolio' system, first implemented by Canning in 1859.
- ❑ According to this system, a member of the Viceroy's council assumed responsibility for one or more government departments and had the mandate to issue conclusive orders on behalf of the council concerning matters within their designated department(s).
- ❑ **Ordinance powers:** It granted authority to the Viceroy to promulgate ordinances without requiring the approval of the legislative council in times of emergency, which were to remain valid as law for six months unless cancelled by the Secretary of State in Council or by the Legislative Council at the Centre.
- ❑ This act **vested the Governments of Bombay and Madras with legislative powers**.
- ❑ **The budget system** was introduced in British India in **1860**.

Significance

It introduced a grain of popular element to the extent that it provided that the Governor-General's executive council, which was traditionally comprised solely of officials, should now include specific non-official members when engaged in legislative activities as a legislative council.

INDIAN COUNCILS ACT OF 1892 (VICEROY LANSDOWNE)

The Provisions of This Act Were as Follows

- ❑ **Increased non-officials:** It preserved the official majority in the Central and provincial legislative councils while adding more (non-official) members.

- ❑ **Enhanced Legislative Functions:** It empowered legislative councils to discuss the **budget and ask questions of the administration** after providing them with six days' notice.
- ❑ **Nomination of Non-Officials:** It stipulated that the **Viceroy, acting on the advice of the provincial legislative councils and the Bengal Chamber of Commerce**, could **nominate certain non-official members of the Central Legislative Council**, and the Governors could nominate members of the provincial legislative councils acting on the advice of district boards, municipalities, universities, trade associations, zamindars, and chambers.
- ❑ **Election-related indirect provisions:** The act established a restricted and indirect provision for the use of elections to fill a few non-official seats in the province and national legislative councils. The Act did not, however, contain the word "election." The procedure was explained as a nomination submitted on specific bodies' recommendations

INDIAN COUNCILS ACT OF 1909 (VICEROY MINTO)

This Act is also known as Morley-Minto Reforms (Morley was the then Secretary of State for India, and Minto was the then Viceroy of India).

The Provisions of This Act Included The Following

- ❑ **Increased Legislative Size:** The Act significantly augmented the size of both Central and provincial legislative councils. The membership in the Central legislative council was **raised from 16 to 60**, while the **number of members in provincial legislative councils varied**.
- ❑ **Retained Majority in Central:** While maintaining an **official majority** in the Central legislative council, the Act permitted provincial legislative councils to have a non-official majority.
- ❑ **Increased Functions:** The Act expanded the deliberative functions of legislative councils at both levels. Members were granted the **ability to pose supplementary questions**, propose resolutions on the budget, and engage in similar activities.
- ❑ **Association of Indians with Executives:** It , for the first time, introduced the association of Indians with the executive councils of the Viceroy and Governors. Satyendra Prasad Sinha made history as the first Indian to join the Viceroy's executive council, serving as the Law Member.
- ❑ **Introduced Communal Representation:** The Act implemented a system of communal representation for Muslims by endorsing the concept of a 'Separate Electorate.' Under this provision, Muslim members were to be elected exclusively by Muslim voters, thereby

legalizing communalism. Minto gained recognition as the Father of the Communal Electorate. Additionally, the income qualification for Muslim voters was lower than that for Hindu voters.

- ❑ **Separate Representation:** The Act also mandated separate representation for presidency corporations, chambers of commerce, universities, and zamindars.

GOVERNMENT OF INDIA ACT OF 1919 (VICEROY CHELMSFORD)

On August 20, 1917, the British Government (**for the first time**) declared its aim for the gradual introduction of a responsible Government in India, leading to the enactment of the **Government of India Act of 1919**, commonly known as the **Montagu-Chelmsford Reforms** (named after the Secretary of State for India, Montagu, and the Viceroy of India, Chelmsford). This legislation, effective in 1921, implemented several significant provisions:

- ❑ **Introduction of Dyarchy:** The Act relaxed central control over provinces by delineating central and provincial subjects. Both central and provincial legislatures were empowered to enact laws within their respective subject lists. Despite this, the government structure remained centralised and unitary.

Provincial subjects were divided into transferred and reserved categories.

 - **Transferred subjects were administered by the Governor** with ministerial aid responsible to the legislative council, while
 - **Reserved subjects** were managed by the **Governor and his executive council** without legislative council responsibility.

This dual governance structure, **known as 'dyarchy', proved largely unsuccessful.**
- ❑ **Introduced Bicameralism:** Bicameralism and direct elections were introduced for the first time, replacing the Indian legislative council with a bicameral legislature comprising an Upper House (Council of State) and a Lower House (Legislative Assembly). The majority of members in both houses were directly elected. Additionally, it mandated that three of the six members of the Viceroy's Executive Council (excluding the Commander-in-Chief) were to be Indian.
- ❑ **Extended Communal Representation:** The Act extended communal representation by establishing separate electorates for Sikhs, Indian Christians, Anglo-Indians, and Europeans.
- ❑ **Limited Franchise Granted:** The franchise was granted to a restricted segment of the population based on property, tax, or education.
- ❑ **Office of High Commissioner:** It created the office of the High Commissioner for India in London, transferring

some functions previously performed by the Secretary of State for India. The Secretary of State was now to be paid by the British Exchequer.

- ❑ **Central Public Service Commission:** The Act provided for the establishment of a public service commission, leading to the establishment of the Central Public Service Commission in 1926 for recruiting civil servants.
- ❑ **Separate Budget:** It separated provincial budgets from the Central budget for the first time, authorizing provincial legislatures to enact their budgets.
- ❑ **Commission to Enquire on Working of the Act:** The Act included a provision for the appointment of a statutory commission (Simon Commission) to inquire into and report on its functioning after ten years.



IGNITE YOUR MIND

In the present-day context, how far has the Indian polity been successful in tackling the challenge of modern communalism?

GOVERNMENT OF INDIA ACT OF 1935 (VICEROY WILLINGDON)

The Act marked a second milestone towards a completely responsible government in India. It was a lengthy and detailed document having **321 Sections and 10 Schedules**.

The Characteristics of This Act Included

- ❑ **Division of the Subjects:** The Act proposed the creation of an All-India Federation, comprising provinces and princely states as units. It delineated powers between the Centre and units through three lists:
 - Federal List (for Centre, encompassing 59 items)
 - Provincial List (for provinces, covering 54 items)
 - Concurrent List (for both, involving 36 items)

Residual powers were vested in the Viceroy. However, the federation did not materialize due to the non-participation of princely states.

- ❑ **Provincial Autonomy:** The Act **abolished dyarchy in provinces**, instituting 'provincial autonomy' instead. Provinces could function as autonomous administrative units within their designated spheres. The Act also introduced **responsible government** in provinces, requiring the Governor to act on the advice of ministers accountable to the provincial legislature. This was implemented in 1937 but discontinued in 1939. **Provinces derived power directly from the Crown**, enabling them to borrow money for their own security.
- ❑ **Dyarchy at Centre:** The Act provided for the adoption

of dyarchy at the Centre, dividing federal subjects into reserved and transferred subjects. However, **this provision did not come into operation**.

- ❑ **Introduction of Bicameralism:** Bicameralism was introduced in six out of eleven provinces, including Bengal, Bombay, Madras, Bihar, Assam, and the United Provinces. These legislatures became bicameral, comprising a legislative council (upper house) and a legislative assembly (lower house), although numerous restrictions were imposed.
- ❑ **Communal Representation:** The Act extended communal representation by establishing separate electorates for depressed classes (Scheduled Castes), women, and labour (workers).
- ❑ **Extended Franchise:** Approximately 10 percent of the total population gained the right to vote.
- ❑ **Abolished the Council:** The Act abolished the Council of India established by the Government of India Act of 1858, providing the secretary of state for India with a team of advisors.
- ❑ **Establishment of RBI:** It facilitated the establishment of the Reserve Bank of India to regulate the country's currency and credit.
- ❑ **Public Service Commissions in the provinces:** The Act provided for the creation of not only a Federal Public Service Commission but also Provincial Public Service Commissions and Joint Public Service Commissions for two or more provinces.
- ❑ **Federal Court:** It established a Federal Court in 1937 with original and appellate powers to settle inter-state disputes, although this court was largely influenced by the Privy Council in London.



IGNITE YOUR MIND

Indian Constitution is referred to as a "Carbon copy of the 1935 act". Can you think of reasons that compelled our constitution makers to continue with the same framework of provisions?

INDIAN INDEPENDENCE ACT OF 1947

Again on June 3, 1947, the British Government reiterated that any Constitution formulated by the Constituent Assembly of India (established in 1946) would not be applicable to regions of the country that are unwilling to accept it. Simultaneously, Mountbatten, serving as the Viceroy of India, introduced the partition plan, commonly recognized as the Mountbatten Plan, on the same day. Both the Congress and the Muslim League endorsed the plan, and it was promptly implemented through the enactment of the Indian Independence Act of 1947.

The **provisions of this legislation** encompassed the following key points:

- ❑ **End of British Rule:** It marked the conclusion of British rule in India, officially declaring India as an independent and sovereign state on August 15, 1947.
- ❑ **Partition:** The act facilitated the partition of India, and established two autonomous dominions—India and Pakistan—each with the right to secede from the British Commonwealth.
- ❑ **Administrative Changes:** The legislation abolished the position of Viceroy, introducing a Governor-General for each dominion appointed by the British King on the advice of the dominion cabinet. The British government held no responsibility for the governance of India or Pakistan.
- ❑ **Legislative Powers:** It stripped the British Monarch of the authority to veto bills or request the reservation of certain bills for approval. This prerogative was retained by the Governor-General, who had full power to assent to any bill in the name of His Majesty.
- ❑ **Constitutional Heads:** The Governor-General of India and provincial governors were designated as Constitutional (nominal) heads of the states, obligated to act on the advice of their respective councils of ministers in all matters.
- ❑ **Removal of Imperial Title:** The royal titles of the King of England no longer included the title of Emperor of India.
- ❑ **Empowerment of Constituent Assemblies:** The act conferred authority upon the Constituent Assemblies of both dominions to formulate and adopt Constitutions, enabling them to repeal any act of the British Parliament, including the Independence Act itself.
- ❑ **Legislative Autonomy:** Constituent Assemblies were empowered to legislate for their respective territories until the enforcement of new Constitutions. Acts of the British Parliament passed after August 15, 1947, were not applicable unless extended by the dominion's legislature.

- ❑ **Commonwealth Affairs:** The legislation abolished the position of the Secretary of State for India, transferring responsibilities to the Secretary of State for Commonwealth Affairs.
- ❑ **Princely States:** Paramountcy over Indian princely states lapsed, and treaty relations with tribal areas ceased on August 15, 1947. Princely states were granted the freedom to join either the Dominion of India, the Dominion of Pakistan, or remain independent.
- ❑ **Governance by Government of India Act of 1935:** Provision was made for the governance of dominions and provinces by the Government of India Act of 1935 until new Constitutions were drafted, with dominions authorized to make modifications.
- ❑ **Civil Services:** The act discontinued appointments and post reservations by the Secretary of State for India, ensuring that members of the civil services appointed before August 15, 1947, continued to enjoy entitled benefits.

At the **stroke of midnight on August 14-15, 1947**, British rule concluded, transferring power to the independent Dominions of India and Pakistan. **Mountbatten assumed the role of the first Governor General of the Dominion of India**, swearing in **Jawaharlal Nehru as the inaugural Prime Minister of independent India**.

ABOUT INTERIM GOVERNMENT (1946)

Formation: Under the Cabinet Mission, elections were held in the provincial assemblies for the Constituent Assembly in July 1946. Shortly after, on July 29, 1946, the Muslim League gave a call for “direct action” from August 16 to achieve Pakistan. It was followed by communal riots. The Interim Government was sworn in on September 2, 1946. In October 1946, the League also joined it.

The members of the interim Government were members of the Viceroy's Executive Council. The Viceroy continued to be the head of the Council. But, Jawaharlal Nehru was designated as the Vice-President of the Council.

The members of the interim Government	Portfolios held
Jawaharlal Nehru	Vice-President of the Council; External Affairs & Commonwealth Relations
Sardar Vallabhbhai Patel	Home, Information & Broadcasting
Dr. Rajendra Prasad	Food & Agriculture
Dr. John Mathai	Industries & Supplies
Jagjivan Ram	Labour
Sardar Baldev Singh	Defense
Liaquat Ali Khan (Muslim League)	Finance
Abdur Rab Nishtar (Muslim League)	Posts & Air
Asaf Ali	Railways & Transport
C.H. Bhabha	Works, Mines & Power

C. Rajagopalachari	Education & Arts
I.I. Chundrigar (Muslim League)	Commerce
Ghaznafar Ali Khan (Muslim League)	Health
Joginder Nath Mandal (Muslim League)	Law

First Cabinet of Independent India (1947)

Members	Portfolios held
Jawaharlal Nehru	Prime Minister; External Affairs & Commonwealth Relations; Scientific Research
Sardar Vallabhbhai Patel	Home, Information & Broadcasting; States
Dr. Rajendra Prasad	Food & Agriculture
Dr. John Mathai	Railways & Transport
Maulana Abul Kalam Azad	Education
R.K. Shanmugham Chetty	Finance
Dr. B.R. Ambedkar	Law
Jagjivan Ram	Labour
Sardar Baldev Singh	Defence
Raj Kumari Amrit Kaur	Health
C.H. Bhabha	Commerce
Rafi Ahmed Kidwai	Communication
Dr. Shayama Prasad Mukherji	Industries & Supplies
V.N. Gadgil	Works, Mines & Power

CONCLUSION

While the Pre-Independence Legislation played a critical role in the establishment and expansion of British rule in India, it also contributed to the creation of modern institutions and systems. However, these developments came at the cost of significant economic exploitation and political subjugation. The legacy of these Acts is thus a complex interplay of colonial control and the gradual emergence of modern India.